

25STCV10798 25STCV10798

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Case Number: 25STCV10798 Hearing Date: July 13, 2026 Dept: 510

No. 16 - Vahigh Sarhadrahimbad v.

Mobilias Insurance Company

Petitioner Vahigh

Sarhadrahimbad's Motion to Compel Consolidated Arbitration

Petitioner Vahigh

Sarhadrahimbad moves to consolidate the pending arbitration against Respondent Mobilias Insurance Company's ("Mobilias") with a separate arbitration against Respondent United States Fire Insurance ("US Fire"). US Fire filed an opposition.

Request for Judicial Notice

Petitioner

requests the Court take judicial notice of three different rulings issued by various trial court departments concerning similar motions. These materials are not relevant to this Court's ruling of the issues and provide no binding authority. The request for judicial notice is denied.

Factual Background

Petitioner previously filed

a motion to consolidate two arbitration proceedings between Petitioner and Mobilias, and Petitioner and nonparty Blue Star Insurance Company. In opposition to the motion, nonparty Blue Star argued that it was the incorrect party to arbitrate the matter. The Court denied the motion on April 27, 2026, reasoning in part that Blue Star was not a party to the case and there was no evidence

that it was even compelled to arbitrate under any agreement. In response to the Court's ruling, Petitioner identified the correct party to arbitrate the matter, US Fire, substituted it as a Defendant in this action on April 29, 2026, and filed the instant motion.

Consolidate Arbitration Proceedings

Code of Civil Procedure

section 1281.3 provides, in relevant part:

A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

- (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and
- (2) The disputes arise from the same transactions or series of related transactions; and
- (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.

Here, the first two elements are not disputed, as US Fire acknowledges that it will arbitrate the matter with Petitioner and that two arbitration agreements exist. However, US Fire argues that Petitioner cannot show there is a common issue of law or fact between the separate arbitration proceedings to meet the third element. US Fire contends that Mobilias' arbitration concerns uninsured/underinsured motorist ("UM/UIM") coverage, which is distinct from US Fire's benefits under its Occupational Accident Certificate ("OAC"). Specifically, the UM/UIM arbitration addresses the amount of tort-based damages Petitioner is entitled to recover from the uninsured/ underinsured motorist policy. The proceeding is conducted under Insurance Code section 11580.2. In contrast, the OAC arbitration addresses third-party contractual rights, analyzes contract-based benefit eligibility, limits, and offsets, and is conducted based on the arbitrator's scheduling order. Thus, US Fire argues, there are no overlapping issues that would risk the possibility of conflicting rulings.

The Court disagrees. Even though Respondents' obligations arising under different contracts, these coverage disputes arise from the same motor vehicle accident and will necessarily involve an evaluation of Petitioner's injuries and treatment, which are relevant under both policies. US Fire admits that the OAC arbitration will involve a determination of covered expenses for reasonable charges ordered by a physician for medically necessary treatment. This inquiry will require evaluation of the same injury and treatment evidence at issue in the UM/UIM proceedings. Further, Mobilias is entitled to any offset amount paid by US Fire. Thus, litigating these common issues in a consolidated arbitration would be most efficient. The arbitrator can determine how the arbitration will proceed, such that each carrier may need to participate only in those portions that affect their policies, thereby minimizing any burden. The Court exercises its discretion under Code of Civil Procedure section 1281.3 to order consolidated proceedings.

Disposition

Petitioner Vahigh

Sarhadrahimbad's motion to compel consolidated arbitration is granted. Respondent United States Fire Insurance is hereby ordered to arbitrate this matter in a consolidated proceeding alongside Respondent Mobilias Insurance Company and Petitioner.

The parties should proceed under a single neutral arbitrator as set forth in Code of Civil Procedure section 1281.3. If the parties cannot agree on an arbitrator, the Court will appoint a neutral arbitrator consistent with the procedures under Code of Civil Procedure section 1281.6.

The case remains stayed.